

**THE COMMONWEALTH OF MASSACHUSETTS
DEPARTMENT OF THE TRIAL COURT**

NORFOLK, ss.

SUPERIOR COURT DEPARTMENT

**JOANNE DELAPA, of DELAPA REALTY
TRUST**

PLAINTIFF

v.

**TOWN OF WESTWOOD CONSERVATION
COMMISSION**

DEFENDANT.

**PETITION FOR CERTIORARI PURSUANT TO M.G.L. C. 249, § 4; AND FOR
DECLARATORY JUDGMENT, PURSUANT TO M.G.L. C. 231A, § 1**

INTRODUCTORY STATEMENT

1. The Plaintiff, Joanne Delapa, of Delapa Realty Trust ("Delapa"), brings this action pursuant to M.G.L. c. 249, § 4 in the nature of certiorari, equitable relief, and under M.G.L. c. 231A § 1 for a declaration of rights, against the Defendant Town of Westwood Conservation Commission ("Commission"), seeking judicial review of the Commission's administrative review of a Notice of Intent ("NOI") filed by Delapa under the Town of Westwood Wetlands Protection Bylaw ("Bylaw") and associated Regulations, and under the Wetlands Protection Act (M.G.L. c. 131, § 40, "WPA"), and its Regulations (310 CMR 10.00), seeking issuance of an Order of Conditions ("OOC") approving the proposed project under both the local ordinance and the WPA at the property known as 42 Mill Street, Westwood, MA ("Site").

2. Prior to the close of the hearing and of any vote, the Plaintiff formally withdrew the NOI under the local Bylaw on October 18, 2021.
3. This Complaint seeks relief from the Commission's OOC on Delapa's NOI application, in which the Commission issued a ruling on November 18, 2021 that denied the project under the WPA and purported to deny it under the local Bylaw, even though the application had been withdrawn under the Bylaw.
4. The issuance of a local Order following the timely withdrawal of the application under the Bylaw was an error of law.
5. In addition to the legal error, the Commission based its decision on erroneous findings of fact and law. The erroneous findings of the Commission included that the Applicant had not appealed an earlier issued Superseding Order of Resource Area Determination ("SORAD") that found part of the property to have a perennial stream (see Finding #3).
6. In fact, as the Commission's own records reflect, the Applicant appealed the SORAD and obtained a Final Order of Resource Area Delineation ("FORAD") from the DEP that made a binding ruling regarding the lack of a stream – the area in question is adjacent to a pond, and such areas are regulated differently from areas adjacent to a perennial stream.
7. The FORAD was issued by DEP's Commissioner on December 18, 2016, and extended by the Department of Environmental Protection ("DEP") on December 24, 2019.
8. After the issuance of the FORAD, the Commission issued a local ORAD accepting and incorporating the findings of the FORAD in January 2017.
9. During the NOI review process, the Commission hired a peer reviewer, who decided, without being directed by the Commission, to review the wetland resources on the Site despite the still valid and binding FORAD.

10. The peer reviewer ultimately made his own determination regarding the boundaries and extent of the resource areas on the Site, reached conclusions different from the resources and boundaries established by the DEP in the FORAD that are binding on all parties, and the Commission erroneously relied on the peer reviewer's findings in its Order despite the existing FORAD.
11. The Commission refused to accept a withdrawal of the local NOI application, which consistent with the procedures outlined in the WPA and binding on the Commission under the local Bylaw, Delapa's representative filed with the Commission in writing prior to the Commission's vote on the application and informed the Commission that the applicant wished to proceed only under the WPA and its regulations.
12. While Commissions may adopt standards that are more stringent than those of the WPA, they are bound to use procedures that are not inconsistent with or contrary to state law.
13. In its OOC, the Commission quoted the findings from the invalidated Superseding Order of Resource Area Delineation ("SORAD") including the findings regarding Riverfront Area, despite the SORAD having been overturned by the DEP in the FORAD and the Commission itself having amended its ORAD to incorporate the FORAD findings.
14. The OOC denial also includes in support of the denial a finding that the property is not served by an approved subdivision way, but instead will need access by way of a common driveway.
15. This finding is not relevant to the Commission's jurisdiction over wetland resource areas; and is also factually and legally incorrect.
16. The wetlands resource areas at issue in this proceeding, as those resources are defined in the Bylaw, as acknowledged by the Commission in its amended ORAD, are identical

under the Bylaw to the boundaries defined by the Act and its implementing regulations as determined by the FORAD.

17. In Count I, the Plaintiff seeks Declaratory Judgment that the Commission erred in claiming the authority to refuse to accept Delapa's withdrawal of an application under the local Bylaw prior to a vote and action on the application. Thus, Plaintiff seeks a judgment that the OOC issued by the Commission under the Bylaw is void *ab initio*, having been issued when Delapa had already withdrawn the application under the Bylaw and nothing was before the Commission under the Bylaw on which to vote.
18. In Count II, Plaintiff seeks Declaratory Judgment ruling that the Bylaw and its local rules establish wetlands resources that are no different from those created by the State under the WPA. The Commission issued a local ORAD accepting the wetland resource boundaries as determined under the FORAD. Therefore, the Commission's issuance of its OOC, which ignores the still binding FORAD's wetland resource boundaries and relies on the Commission's peer reviewer's calculation of disturbance based on his delineation, is invalid and unenforceable because the Bylaw is no more stringent, as to the boundaries of protected resources at issue in this case, than the State law, and because the Commission has already accepted and been bound by the boundaries determined by the binding FORAD.
19. In Count III, if the Court does not first grant Declaratory Judgment on Counts 1 and 2, in the alternative the Plaintiff seeks certiorari review of the OOC under the local Bylaw, and a finding invalidating the Commission's decision as arbitrary and capricious, as inconsistent with and not supported by substantial evidence in the record, and the result of significant errors of law.

PARTIES

20. The Plaintiff, Joanne Delapa of the Delapa Realty Trust, has a mailing address at P.O. Box 277, Norwood, MA 02062, and is the owner of the property at 42 Mill Street, Westwood, MA 02090 (the "Site").
21. The Defendant, Town of Westwood Conservation Commission ("Commission"), is the duly constituted body charged with implementing the Town of Westwood Wetlands Protection Bylaw, Chapter 392 of the Westwood General Bylaws ("Bylaw"), originally adopted by the 1989 Annual Town Meeting; and the Conservation Commission Regulations adopted by the Commission on February 13, 2008.

JURISDICTION

22. The Superior Court has jurisdiction under M.G.L. c. 249, § 4 as this is a case involving a civil action in the nature of certiorari to correct errors in proceedings before a municipal body, where such proceedings are not otherwise reviewable by motion or appeal. The Court may enter judgment quashing or affirming such proceedings or such judgment as justice requires. The Court also has jurisdiction under M.G.L. c. 231A § 1 to issue Declaratory Judgment and grant equitable relief.
23. The Plaintiff seeks to correct errors in the proceeding before the Westwood Conservation Commission, which errors are contrary to the Bylaw and contrary to the provisions set forth in the Massachusetts Wetland Protection Act and its implementing regulations that are referenced in and incorporated into the local bylaw and its regulations.
24. There is no other appeal or review available to Plaintiff to challenge the Commission's decision under the Bylaw, and that decision has resulted in substantial injury and manifest injustice to the Plaintiff.

FACTUAL ALLEGATIONS

25. Delapa filed a NOI application seeking approval to construct a single-family residence and the appurtenant amenities on the property at 42 Mill Street in Westwood ("Site"), which consists of an existing undeveloped lot of land, created by plan recorded in 1969 with 4 acres, fronting on Mill Street and having deeded rights to use of an existing driveway as access into the site, with that driveway located within an approved subdivision right of way for which any further construction was waived by the Planning Board.
26. The application, plans, and supporting materials for the NOI are based on the resource areas identified and confirmed in the FORAD, issued in 2016 and extended by the DEP under the WPA, and which were adopted in an amended ORAD issued under the Bylaw by the Commission.
27. The FORAD is still valid and binding on the Site.
28. The Commission disregarded the FORAD and had its peer reviewer suggest alternative boundaries for the resource area on the Site.
29. Delapa's representative filed in writing the withdrawal of the NOI application as filed under the local Bylaw on October 18, 2021, directing the Commission to proceed only under the WPA.
30. Contrary to the procedures in the Act, the Commission ignored the written withdrawal of the application under the Bylaw and proceeded with the continued hearing on November 10, 2021, and at that hearing purported to close the hearing under the WPA and the Bylaw, for which the Applicant had already withdrawn the application, and voted to deny the project under the Act and the Bylaw.

31. The Commission thereafter issued the denial purporting to be under the Bylaw and the Act on November 18, 2021.
32. The Commission also relied on its peer reviewer's delineation and calculations based on that delineation in the OOC, ignoring the binding FORAD.
33. Delapa has timely appealed the Commission's denial issued under the WPA to the DEP, and the DEP accepted the appeal and conducted its appeal site inspection on January 6, 2022. Delapa contends that the project in fact complies with the regulatory standards under the WPA, including the performance standards for work impacting and adjacent to Bordering Vegetated Wetlands ("BVW"). DEP requested specific additional technical information that is easily provided, and Delapa anticipates that DEP will issue a Superseding Order of Conditions after its review and will rule that the proposed project complies with the WPA and its regulations.
34. This Complaint seeks relief from the Commission's OOC under the Bylaw, on the grounds that OOC is ultra vires, arbitrary and capricious, and an abuse of discretion.
35. The Plaintiff seeks relief from the Court as there is no alternative route for relief available under the Bylaw.
36. This Complaint is timely filed, within sixty (60) days after the issuance of the OOC.

COUNT I (Declaratory Judgment under M.G.L. c. 231A § 1.)

Refusal to Accept a Withdrawal of an Application

37. Plaintiff realleges and incorporates herein all allegations made in paragraphs 1 through 36 above.

38. Delapa's representative informed the Commission in writing on October 18, 2021, that Delapa withdrew the NOI application filed under the Bylaw, and wished to proceed with the NOI solely under the state law.
39. The Commission ignored that instruction, proceeded with the hearing under both the Act and the Bylaw on November 10, 2021, voted on and thereafter on November 18, 2021 issued an OOC under both the state law and the Bylaw.
40. A Commission has no discretionary authority to refuse to accept a withdrawal of an application when withdrawn prior to the Commission closing its hearing and voting.

WHEREFORE, the Plaintiff hereby respectfully requests this Court, pursuant to M.G.L. c. 231A, § 1, to:

1. Declare that the Commission acted outside its legal authority in refusing to accept the withdrawal of the application; and
2. Declare that the Commission, after the withdrawal, lacked jurisdiction over the application or authority to issue an OOC under the Bylaw; and
3. To rule and declare that the OOC issued under the Bylaw is void and without effect; and
4. Such other relief that the Court deems appropriate.

COUNT II (Declaratory Judgment, M.G.L. c. 231A, § 1)

Vegetated Wetlands, Stream, and Riverfront Boundaries and Their Performance

Standards Are the Same Under the Bylaw as Under State Law, and Therefore Not

Separately Enforceable

41. Plaintiff realleges and incorporates herein all allegations made in paragraphs 1 through 40 above.

42. The Bylaw has definitions of Freshwater Wetlands, Streams, Rivers, and Riverfront Area that result in exactly the same boundaries as resources defined under state law.
43. The Bylaw also defines the term "Alter" in terms that are effectively identical to the definition provided by the WPA and DEP's Regulations, other than in Subsection 11 of the Bylaw's "Alter" definition pertaining to activities undertaken "within 35 feet of the boundary of a wetland...". The Bylaw, however, explicitly exempts or excepts the subject project from the so called 35' rule, at Section 392-3 "Exceptions, paragraph C.(1) which provides that the "Subsection (11) of the definition of "alter" . . .shall not apply" to lots such as the Site which were in existence as of March 1, 1998.
44. The Bylaw has no performance standards for work in Buffer Zone or in Resource Areas, and explicitly adopts and incorporates by reference the defined terms of the WPA and DEP's Regulations in Section 392-8(B).
45. The Commission has not adopted substantive regulations under the Bylaw.
46. The Bylaw explicitly provides at Section 392-7 that until "such time as such regulations are promulgated, the regulations promulgated under the Wetlands Protection Act, MGL c. 131, § 40, shall be deemed to effectuate the purposes of this bylaw."
47. Therefore, the performance standards under the Bylaw are identical to those under the WPA.
48. Where a local Bylaw has standards no more stringent than state law, the local Bylaw is not separately enforceable.

WHEREFORE, the Plaintiff hereby respectfully requests this Court, pursuant to M.G.L. c. 231A, § 1, to:

1. Declare that the Commission acted outside its legal authority in issuance of a separate Order under its Bylaw when its boundaries and performance standards as applicable in this proceeding are not more stringent than state law; and
2. To rule and declare that the OOC issued under the Bylaw is void and without effect; and
3. For such other and further relief as the Court shall deem, meet and just.

COUNT III (Certiorari, M.G.L. c. 249, § 4)

The Commission's Decision is Ultra Vires, Exceeding Its Authority, Not Supported By Substantial Evidence in the Record, and is Arbitrary, Capricious, and an Abuse of Discretion

49. Plaintiff realleges and incorporates herein all allegations made in paragraphs 1 through 48 above.
50. The Commission's peer reviewer ignored an existing, still valid and binding FORAD and made conclusory statements regarding his opinion on the resource areas on Site.
51. The Commission relied solely on its peer reviewer's calculations in issuing the OOC.
52. The FORAD and the NOI application contain substantial evidence demonstrating the boundaries of the resource areas on the Site and the project's compliance with the regulatory performance standards.
53. The Commission ignored the binding FORAD and the evidence presented by Delapa's experts, without explanation or rational basis, and arbitrarily, capriciously, and as an error of law issued its OOC denying the project and referencing inaccurate resource area boundaries and impact calculations.
54. The Commission gave no basis for disregarding the substantial evidence in the record, and substituted its own views and arbitrary standards to support its OOC denial.

55. The Commission's OOC is inconsistent with its obligation to make a fact-based ruling guided by the substantive standards of the WPA, its Regulations, and the Bylaw.
56. The Commission's OOC denial was an error of law under the state statute and state regulatory standards that it incorporated by reference into the Bylaw's review standards.

WHEREFORE, the Plaintiff hereby respectfully requests this Court, pursuant to M.G.L. c. 249, § 4, to:

1. Review the record of the proceedings and rule that the Commission's OOC was unsupported by substantial evidence in the record and an error of law, and therefore reversed; and
2. Rule that the Commission's OOC was ultra vires, arbitrary and capricious, and therefore unenforceable; and
3. Enter judgment reversing the Commission's OOC denial;
4. Enter judgment issuing an OOC approving the project under the local Bylaw; and
5. For such other and further relief as the Court shall deem, meet and just.

Respectfully submitted,
Plaintiff Joanne Delapa, of Delapa Realty Trust,
By her attorneys,

Dated: January 12, 2022


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